



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 4575 (EXTENSION)
FOURTH REVISION September 1, 1983

APR 8 1996

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 4575 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to February 28, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

for Marilyn E. Morris
Alan I. Roberts

Associate Administrator
for Hazardous Materials Safety

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Elf Atochem North America, Inc.
Philadelphia, PA

January 26, 1996

Praxair, Inc.
Danbury, CT

February 28, 1996



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DOT-E 4575
(FOURTH REVISION)

1. Union Carbide Corporation, Danbury, Connecticut, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of certain liquefied compressed gases for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the use of DOT Specification cargo tanks and tank car tanks not presently authorized and AAR approved non-DOT specification tank cars, and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

Racon, Incorporated, Wichita, Kansas - PTE-1.

2. BASIS. This exemption is based on Union Carbide Corporation's applications dated October 20, 1982, and May 16, 1983, submitted in accordance with 49 CFR 107.105 and 107.103 and the public proceeding thereon. The granting of party status is based on the following applications submitted in accordance with 49 CFR 107.111 and 107.105 and the public proceeding thereon:

Racon, Incorporated's application dated October 4, 1982.

3. HAZARDOUS MATERIALS (Descriptor and class).

a. All nonflammable, or flammable, nonpoisonous refrigerants, dispersants, and mixtures thereof (halogenated hydrocarbons) listed in 49 CFR 173.314(c) and 173.315(a)(1) and any other compressed gas meeting one of the following:

- i. A nonflammable mixture containing not less than 50% fluorocarbon content, having a vapor pressure not exceeding 260 psig at 130°F., or,
- ii. A flammable mixture containing not less than 50% fluorocarbon content, not over 40% of a flammable component, having a vapor pressure not exceeding 260 psig at 130°F., or,
- iii. A mixture not described in (a)(i) or (a)(ii) above, which has been specifically identified to, and acknowledged in writing by, the Office of Hazardous Materials Regulation (OHMR) prior to the first shipment.

b. All nonflammable or flammable, nonpoisonous mixtures of halogenated hydrocarbons (not meeting the refrigerant or dispersant gas description) meeting one of the following:

- i. See (a)(i)
- ii. See (a)(ii)
- iii. See (a)(iii)

c. Butane, iso butane, propane and other liquefied petroleum gases, classed as flammable gases, specifically identified to and acknowledged in writing by the OHMR prior to the first shipment.

d. Methyl chloride, monomethylamine, anhydrous, dimethylamine anhydrous, trimethylamine, anhydrous, classed as flammable gases.

e. Monoethylamine classed as a flammable liquid.

4. PROPER SHIPPING NAME (49 CFR 172.101). Specific chemical name or the generic description, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.314(c), 173.315(a).

6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight, motor vehicle and cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed are:

a. DOT Specification 106A500X and 110A500W multi unit tank car tanks; DOT specification 105A300W, 112A340W, 114A340W tank car tanks and the proposed 120A300W, 120A400W tank cars as specified in the Association of American Railroads Specification for Tanks Cars, dated November 1, 1974, as revised. Tanks may be equipped with bottom outlets. Outlets must be rendered inoperative and effectively sealed to preclude bottom unloading when transporting flammable gases under the terms of this exemption.

b. DOT Specification MC-330 and MC 331 cargo tanks. Outlets must be rendered inoperative and effectively sealed to preclude bottom unloading when transporting flammable gases under the terms of this exemption.

8. SPECIAL PROVISIONS.

a. Each tank must be equipped and filled in accordance with §173.314 or §173.315, as appropriate. Commodities listed in subparagraphs 3(d) and 3(e) above are authorized only for shipment in the tank car tanks. Commodities covered under 3(a)(iii) and 3(b)(iii) of this exemption having a vapor pressure in excess of 250 psig at 130°F. but not exceeding 350 psig at 130°F. are authorized for shipment in 106A500X and 110A500W tank car tanks.

b. Specification 106A and 110A tanks for these commodities are authorized for transportation by rail freight, highway, and cargo vessel. (See §§ 174.204, 176.200, 176.230 and 177.843(m) for additional requirements).

c. A copy of this exemption must be carried aboard each motor vehicle and cargo vessel used to transport packages covered by this exemption.

d. Compliance with 49 CFR 177.824(c)(4) is waived.

e. Each cargo tank must be plainly marked on the right side near the front in letters at least two inches high on a contrasting background, "DOT-E 4575" near the other prescribed markings. Each tank car tank must be marked "DOT-E 4575" near the other prescribed markings.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the OHMR as soon as practicable.

10. EXPIRATION DATE. November 30, 1984.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

SEP 1 1983

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: FHWA, FRA.